

CHAPTER 8.

An Act to remove temporarily the limit on the moneys provided by Parliament for the purposes of the Diseases of Animals Acts.

[12th April 1922.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

1. The limitation of one hundred and forty thousand pounds imposed by section eighteen of the Diseases of Animals Act, 1894, on the moneys which may be provided by Parliament towards defraying the costs in such section mentioned and be paid to the cattle pleuro-pneumonia account for Great Britain shall not apply to moneys so provided in the financial year ending on the thirty-first day of March, nineteen hundred and twenty-two.

Provision of funds for purposes of the Diseases of Animals Acts.
57 & 58 Vict. c. 57.

2. This Act may be cited as the Diseases of Animals Act, 1922.

Short title.

CHAPTER 9.

An Act to empower the Secretary of State in Council of India to raise money in the United Kingdom for the service of the Government of India and for other purposes relating thereto.

[12th April 1922.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

1. This Act may be cited as the East India Loans (Railways and Irrigation) Act, 1922.

Short title.

Definition.

2. In this Act the expression "Secretary of State" means the Secretary of State in Council of India, unless the context otherwise requires.

Power to raise fifty million pounds for constructing, extending, and equipping railways in India, and irrigation works, and for other purposes.

3. It shall be lawful for the Secretary of State at any time or times to raise in the United Kingdom, as and when necessary, by the creation and issue of capital stock, bonds, debentures, or bills, or partly by one of such modes and partly by another or others, any sum or sums of money not exceeding in the whole fifty million pounds sterling, to be applied to—

- (1) The construction, extension, equipment and improvement of railways in India by State agency, or through the agency of a company or companies under engagement with the Secretary of State;
- (2) The repayment of the principal of any bonds, debentures, or debenture stock issued by any such company under the guarantee of the Secretary of State;
- (3) The discharge of any obligations incurred or arising by reason of the purchase by the Secretary of State of any railway constructed or worked in India by any such company, or on the determination of the contract of any such company with the Secretary of State;
- (4) The construction, extension, equipment, and improvement of irrigation works in India.

Issue of bonds.

4.—(1) All bonds to be issued by the Secretary of State under the authority of this or any previous Act of Parliament may be issued under the hands of two members of the Council of India, and countersigned by the Secretary of State for India, or one of his Under-Secretaries, or his deputy or assistant Under-Secretary, and shall be for such respective amounts, payable after such notice, and at such rate or rates of interest, as the said Secretary of State may think fit, and all signatures required by this section may be impressed or affixed by machinery or otherwise in such manner as the Secretary of State may from time to time direct.

- (2) Bonds issued before the passing of this Act and bearing the prescribed signatures impressed or affixed by

machinery, or otherwise, shall be deemed to have been lawfully issued.

5. The power given to the Secretary of State by this or any previous Act of Parliament to raise money by means of stock or other securities shall be deemed to include and to have always included the power to provide for redemption of stock or securities at a premium, and the power to arrange for giving an option (subject to such conditions and on such terms as he may determine and with or without payment of any further consideration) to holders of stock or securities to take new stock or securities in lieu thereof and to create stock or securities for the purpose, and any stock or securities surrendered for the purpose of exchange shall be cancelled.

Power to
redeem
securities at
a premium,
&c.

Any stock or securities created for the purpose of an exchange under this section shall not be taken into account in calculating the nominal amount of securities authorised to be issued under this or any previous Act.

6. In case of the creation and issue of capital stock there shall be kept, either at the office of the Secretary of State in London, or at the Bank of England, books wherein entries may be made of the said capital stock, and wherein assignments or transfers of the same, or any part thereof, may be entered and registered, and may be signed by the parties making such assignments or transfers, or, if such parties be absent, by his, her, or their attorney or attorneys thereunto lawfully authorised by writing under his, her, or their hands and seals, to be attested by two or more credible witnesses; and in such case the person or persons to whom such transfer or transfers shall be made may respectively underwrite his, her, or their acceptance thereof; and no stamp duties whatsoever shall be charged on the said transfers or any of them.

Transfer
books of
capital
stock.

Nothing in this section shall affect the provisions of section six of the Government of India (Amendment) Act, 1916, with respect to the transfer of India Stock by deed.

6 & 7 Geo. 5.
c. 37.

7. Subject to the provisions of this Act, the nominal amount of the stock, bonds, debentures or bills issued under this Act shall not exceed the sum of money authorised to be raised by this Act, and the like provision shall be deemed to have been included in the East India Loans (Railways) Act, 1905, the East India Loans Act, 1908, and the East India Loans (Railways and Irrigation) Act, 1910.

Nominal
amount of
securities to
be issued.
5 Edw. 7. c. 19.
8 Edw. 7. c. 54.
10 Edw. 7. and
1 Geo. 5. c. 5.

Application
of enact-
ments.
56 & 57 Vict.
c. 70.

8. Sections five to eleven inclusive, sections fourteen to sixteen inclusive, and section nineteen of the East India Loan Act, 1893, and section five of the East India Loans Act, 1908, shall be incorporated with this Act:

Provided that—

- (a) the said sections seven and eleven as so incorporated shall have effect as though the words “at par” were omitted; and
- (b) for the purposes of the said section fourteen as so incorporated the purchase of securities in the market and their subsequent cancellation shall be deemed to be repayment of principal monies equal to the nominal amount of the securities purchased.

Saving.

9. This Act shall not prejudice or affect any power of raising or borrowing money, or of creating or issuing securities, vested in the Secretary of State at the time of the passing thereof.

Provision
as to Mem-
bers of the
House of
Commons.
22 Geo. 3.
c. 45.
41 Geo. 3.
c. 52.

10. None of the provisions of the House of Commons (Disqualifications) Act, 1782, or the House of Commons (Disqualifications) Act, 1801, shall be construed so as to extend, or as having extended, to any subscription or contribution to any loan raised under this Act or under any previous Act relating to East India Loans.

CHAPTER 10.

An Act to make provision with respect to the validity of Decrees granted in the Kenya Colony and Protectorate for the dissolution of the marriage of persons domiciled in the United Kingdom.
[12th April 1922.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Validity of
decrees. •
East Africa
Protectorate,
No. 12 of
1904.

1. Any decree granted or made absolute by a court of competent jurisdiction in the Kenya Colony and Protectorate, under the provisions of the ordinance of that Colony and Protectorate known as the Divorce Ordinance, 1904, for the dissolution of a marriage the